

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 13, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave (via Zoom) and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. Cook, item #23 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. White, item #32(b) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 22, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Q-B Subdivision. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#4560)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, High Plains Road beginning at South Greeley Highway and terminating at Division Avenue. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4651)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Saratoga Street and west of Whitney Road. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Cotton Jones, Jones Land Surveying. Comment was made by the following member of the governing body: Dr. Aldrich. (#4562)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Saratoga Street and south of and adjacent to Laramie Street. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#4563)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located at 4204 Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4564)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of City MR Medium Density Residential for land annexed to the City of Cheyenne located at 4204 Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#4565)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to P Public District for land located at Lot 1, Cheyenne Ice & Events Center, 2nd Filing located at 1530 West Lincolnway. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#4566)

ORDINANCE – 2nd READING – Amending Sections 1.4.3 Defined Terms and 5.8.8 Accessory Buildings of the Unified Development Code, clarifying Detached Buildings. Mr. Roybal moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: Victoria Pike. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

ORDINANCE – 2nd READING – Amending Ordinance No. 4519 amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural, and County A-2 to LI Light Industrial for land located west of Burlington Trail and south of and adjacent to HR Ranch Road. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Subsections 6.5.4.b.3 Incentives / Bonus, 6.5.4.b.4 Creative Sign Program, and 6.5.8.j Billboards of the Unified Development Code, to restructure sign incentives and bonuses by modifying allowances for signs near interstate highways, allowances for shared signs, eliminating the Creative Sign Program, and clarifying applicability of certain billboard allowances. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

ORDINANCE – 2nd READING – Amending Section 5.1.5 of the Unified Development Code to allow for up to three stories for detached dwellings, semi-attached dwellings, and attached dwellings. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson and Mr. Segrave.

ORDINANCE – 2nd READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming, and repealing Ordinance No. 4503. Reporting for Finance Committee, Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Cook voting “no”.

ORDINANCE – 2nd READING – Amending Sections 10.82.030 and 10.82.040 of the Municipal Code of the City of Cheyenne, Wyoming, modifying the term of Dockless Vehicle licenses, specifying an effective date and making other conforming amendments. Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE – 1st READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, modifying provisions governing towing and wrecker recovery operation licensure and the Police Department’s towing and wrecker recovery operation rotation list – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025 – referred to Committee of the Whole. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Adopting the City of Cheyenne 2024 Program Year Annual Action Plan prepared by the City of Cheyenne Housing & Community Development Office. Motion (per Consent Agenda) carried. (#6401)

RESOLUTION – Approving water and/or sanitary sewer service, by Outside User Agreement, for Robert GrandPre, for the property at Lot 1, Block 1, Green Subdivision, 4th Filing, Laramie County, Wyoming (east of Ridge Road and north of and adjacent to Green Court). Mr. Roybal moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Bob GrandPre. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave. (#6402)

[CA] RESOLUTION – Adopting the fee schedule setting the approved towing service rates for towing charges related to calls for service by the Cheyenne Police Department made pursuant to the tow rotation list – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Expressing the support of the Governing Body for the submission of an application by the Cheyenne Transit Program to the Wyoming Department of Transportation for grant funding under the Wyoming Rural Public Transit Program – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Supporting the submission of an application to the Wyoming Business Council under the Wyoming Business Ready Community Grant and Loan Program for an Enhancement Grant in support of the development of the Precision Industrial Park – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Business Parkway, Thirteenth Filing, City of Cheyenne, Laramie County, Wyoming (located west of Christensen Road and south of and adjacent to Campstool Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Centennial Heritage, 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located east of Savannah Drive and south and north of Raleigh Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Approving sanitary sewer service, by Outside User Agreement, for Laramie County, for the property known as the Archer Complex (south of the I-80 and Archer Parkway Interchange) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025 – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025 – referred to Finance Committee. (Sponsor – Mr. Roybal)

Improvement Agreement between the City of Cheyenne and DB Cheyenne, LLC for acceptance of cash-in-lieu for public improvements including a turn lane, as required by the UDC and Traffic Impact Study for the development. Dr. Aldrich moved to approve in an amount not to exceed \$70,500.00, seconded by Mr. White. Dr. Aldrich moved to amend by substitute dated May 6, 2024, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Esquibel. (#7964)

Professional Services Agreement between the City of Cheyenne and Univerus, Inc., for the Sanitation Rerouting and Optimization Project (Solid Waste Fund). Dr. Aldrich moved to approve in an amount not to exceed \$142,676.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White. (#7965)

[CA] Professional Services Agreement between the City of Cheyenne and Landmark Aquatics, for the Johnson Pool Evaluation and Design Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and TPT Trails, LLC for the Belvoir Ranch, Phase 2 Design Build Trail Project (Belvoir Recreation Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7775 between the City of Cheyenne and Sunrise Engineering for additional engineering services for the 7th Street Drainage and Access Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$6,500.00). (#7775)

[CA] Contract Modification #1 to Contract #7897 between the City of Cheyenne and Richardson Construction, Inc. for the Gymnastics Facility Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$74,292.50). (#7897)

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for Third Party Administrator Services and Group Health Insurance benefits for City employees (Self Insurance Fund) – referred to Finance Committee.

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for Group Dental Insurance benefits for City employees (Various City Funds) – referred to Finance Committee.

[CA] Renewal of Contract #7523 between the City of Cheyenne and VSP Vision Insurance benefits for City employees (Various City Funds) – referred to Finance Committee.

[CA] Renewal of Contract #7536 between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees (Self Insurance Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-12-24 for an Agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2024 City Overlay #1 Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (accepted the bid in an amount not to exceed \$2,192,669.75). (#7966)

[CA] Consideration of Bid #S-13-24 for an Agreement between the City of Cheyenne and Simon Contractors, for the 2024 City Overlay #2 Project (2021 Specific Purpose Option Tax Fund. Motion (per Consent Agenda) carried (accepted the bid in an amount not to exceed \$1,518,379.60). (#7967)

[CA] Consideration of Bid #S-15-24 for an Agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Surface Seal Project #2 (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (accepted the bid in an amount not to exceed \$2,084,128.00). (#7968)

[CA] Consideration of Bid #S-10-24 for an Agreement between the City of Cheyenne and Reiman Corp for the HAWK Signals Construction Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-20-24 for an Agreement between the City of Cheyenne and Simon Contractors for the Public Works Improvements Project (2019-2022 Optional 1% Sales Tax Fund, Solid Waste Fund, & Fleet Maintenance Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-21-24 for an Agreement between the City of Cheyenne and Spire Building Group for the Municipal Building Restroom Renovations Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-22-24 for an Agreement between the City of Cheyenne and Richardson Construction, Inc. for the Hitching Post Storm Sewer and Paul Smith Way Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Request to amend a previously approved outdoor seating area for consumption by adding an additional area relating to City of Cheyenne Bar & Grill liquor license held by Paris West Restaurant and Bar, located at 1719 Carey Avenue, Cheyenne, Wyoming – referred to Finance Committee.

Urban Renewal Authority 2023 Annual Report. Mr. Esquibel moved to acknowledge receipt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Johnson.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Memorial Day holiday on Monday, May 27, 2024, the regularly scheduled City Council meeting will instead be held on Tuesday, May 28, 2024. The meeting will be held at 2101 O’Neil Avenue in City Council Chambers and via electronic conference meeting at 6:00 p.m.

Announcement was made of a Public Hearing to be held May 28, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to hear public comment regarding the City’s intent to apply for a 2024 Wyoming Business Council Business Ready Community Grant and Loan Program for a Community Readiness Project for essential infrastructure at the Precision Industrial Park.

Public comment was made by the following under Other Business: Ed Galavotti.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Esquibel, Mr. Johnson and Mr. White.

Mr. Esquibel moved to meet in executive session Pursuant to Wyoming Statutes §16-4-405(a)(iii), seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Amber Ash, Mayor’s Chief of Staff; Stefanie Boster, City Attorney; John Brodie, Deputy City Attorney; Charles Bloom, Planning & Development Director; Seth Lloyd, Planning and Development and Kris Jones, City Clerk. [Clerk’s note: Mr. Segrave was absent for Executive Session]

There being no further business to come before the governing body, the meeting was officially adjourned at 8:06 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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